

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

-----X Index No: 600371/2021

DIANE C. DESOUSA

and THOMAS E. DESOUSA,

Plaintiffs,

-against-

**AFFIRMATION IN OPPOSITION
TO PLAINTIFF'S MOTION FOR
SUMMARY JUDGEMENT**

RICHARD A. CALVAGNO II and

PATRICK J. KARCHER,

Defendants.

-----X

JASON M. BARBARA, an attorney duly licensed to practice before the Courts of this State, hereby affirms the truth of the following under the penalties of perjury:

1. I am the attorney for the Defendant, **RICHARD A. CALVAGNO II**, in the above captioned action and as such, am fully familiar with all the facts of this matter. I submit this affirmation in opposition to the Plaintiff's motion for summary judgment seeking to dismiss Defendant CALVAGNO'S five counterclaims.

LEGAL DEFECTS and DEFICIENCIES OF PLAINTIFF'S MOTION PRACTICE

2. At the outset I note that, and in addition to having failed to eliminate all triable issues of fact in connection with the merits of Defendant's counterclaims, fatally:

A. Plaintiff's motion seeking to dismiss Defendant's Counter Claims, fails to annex the Counter Claims or pleadings they ask this Court to dismiss. CPLR Rule 3212 entitled "**Motion for summary judgment**" requires in mandatory language that:

(b) Supporting proof; grounds; relief to either party. A motion for summary judgment **shall be supported by affidavit, by a copy of the pleadings and by other available proof, such as depositions and written admissions. The affidavit shall be by a person having knowledge of the facts;** it shall recite all the material facts; and it shall show that there is no defense to the cause of action or that the cause of action or defense has no merit. If it shall appear that any party other than the moving party is entitled to a summary judgment, the court may grant such judgment without the necessity of a cross-motion." Emphasis supplied.

Fatally, Plaintiff has failed to annex a copy of the pleadings.¹

B. Moreover, the Notice of Motion states that the motion is made upon the twenty-four (24) page affirmation of Plaintiff's counsel (in violation of Court Rule 202.8-b that limits affirmations to 7,000 words and requires notably absent bookmarks ²for all affirmations exceeding 4,500 words.) Respectfully, Plaintiff's counsel does not have personal knowledge of the facts he alleges in his affirmation.³ Case law has long and consistently held that "... **an attorney's affirmation setting forth assertions which are unsupported by factual proof is void of probative value.**" Zuckerman v City of New York, 29 NY2d 557, 404 NE2d 718, 427 NYS2d 595 (Ct App 1985), Pepe v E&M Basement Waterproofing Co., Inc., 6 Misc3d 1027(A), 800 NYS2d 354 (NY Sup 2005), Rosemont Enterprises, Inc. v Choppy Enterprises, Inc., 74 Misc2d 1003, 347 NYS2d 83 (Sup Ct NY Co 1972).

¹ In his footnote "1" counsel cites to "CPLR §2214(c)" (which is actually a Rule and not statute) without explanation. Rule 2214 entitled "Motion papers; service; time" provides at cited subparagraph (c) Each party shall furnish to the court all papers served by him... Only papers served in accordance with the provisions of this rule shall be read in support of, or in opposition to, the motion, unless the court for good cause shall otherwise direct."

² Aside from failing to annex the Answer with Counterclaims that Plaintiff asks this Court to dismiss, he references Exhibits I have spent *hours* trying to find, **along with affidavits from his client annexed somewhere towards the end of the 409 page submission** that are not referenced in the Notice of Motion.

³ There are dozens of such references, but for example, and in paragraph 5 of his affirmation, counsel summarizes "The origin of this case was due to, among other things, Calvagno idling and revving the engine of his high-performance Dodge Charger Hellcat, a vehicle that possesses in excess of 700HP, in the early hours of 6am and 7 am each morning... Thereafter, Calvagno would purposefully "take off" down the street; fully depressing the gas pedal, causing an even greater explosion of noise and vibrations that disrupted Plaintiffs and other neighbors. This suit was commenced after Calvagno rejected Plaintiffs' multiple requests that he try to lessen the noise from his vehicle each morning."

Notably, counsel cites no factual proof of such allegations. He does not refer to the Plaintiff's complaint or testimony. He does not identify the source of his allegations regarding the subject vehicle's horse power, and does not provide the identity of one other neighbor who complained and/or improperly annexes Complaints he did not disclose in discovery. Further still, counsel admits that the lawsuit was commenced AFTER the parties' feud began.

C. Third, and finally, although raised in Defendant's Verified Answer, again at court conferences and finally, even at deposition, Plaintiff's complaint⁴ defectively and quite fatally, mistakenly pleads in ¶4 that:

"Upon information and belief... Plaintiffs were and are the fee owners and residents of ... 320 Grand Central Avenue" ie property titled to the Defendants, NOT Plaintiffs.

5. The Complaint and Plaintiff's underlying motion for summary judgment, are thus procedurally defective and as Plaintiff has failed to correct even the ownership of the property in question, the Complaint must be dismissed, *see*, Bischof v Gountas-Ortiz, 59 Misc 3d 1225(A) [Sup Ct 2018] along with Plaintiff's unsupported and procedurally defective motion for summary judgment dismissing Defendant's counterclaims and pleadings he fails to annex.

6. Should this Court nonetheless consider Plaintiff's defective motion practice, your affirmant addresses each counterclaim and Plaintiff's complaints thereto in below and corresponding subheadings below set forth.

7. Addressing then the merits of Plaintiffs' "strategic" Notice of Motion (at the time of its making, Defendant had already moved for summary judgment on his counterclaims and to dismiss Plaintiffs' complaint in its entirety. Plaintiffs could have cross moved for the similar relief they seek herein, but instead chose to commence their own motion in chief and thus be granted three (3) opportunities to present to this Court as opposed to two (2.) The strategy cannot go unnoticed as, it mirrors Plaintiff's trial tactics and, among other confusing difficulties, *infra*, the Plaintiff's propensity to present "discovery" after the completion thereof and then accuse Defendant of misrepresenting the absence of neighbors reports that he was provided with):

A. The facts and testimony speak for themselves and fail to provide any triable issue of fact on the Plaintiffs' insufficiently pled causes of action for nuisance and intentional torts

⁴ See EXHIBIT "B"

alleged in the Complaint, while explaining the Plaintiff's prejudice as the reason for his meritless Complaint.

B. Defendant's annexed affidavit further explains some confusion on dates the Plaintiff seizes upon to accuse Defendant of "fraud" and support his own motion to dismiss the counterclaims.

C. As Defendant's affidavit attests, and the deposition of Vincent Camarda (noticed by Plaintiff) confirms, Plaintiff THOMAS DeSOUSA has a vendetta against the Defendant, grounded in bias, prejudice and homophobia. His Complaint is not grounded in fact or law, and indeed, post discovery, Plaintiffs still failed to provide any evidentiary proof to support their nuisance complaint and/or more specifically:

1. **police reports finding any merit to Plaintiffs' complaints.** Although counsel herein references police reports that were not turned over in discovery, it is worth noting that they only report Plaintiffs' complaints, but find NO actionable offense. Similarly, and despite Plaintiffs' repeated complaints to controlling authorities, **NO building department or other governing bodies have issued any violations** to Defendants and that the Plaintiffs failed to offer an unbiased, third party expert report documenting the sound of Defendant's car a nuisance;

2. despite testified efforts to enlist the participation of others in their lawsuit, **NO other neighbor joined Plaintiffs in the commencement of the lawsuit or, provided even a supporting affidavit** or testified in support of Plaintiff's Complaint. In fact, the only neighbor Plaintiff subpoenaed to testify was Mr. CAMARDA the owner of the home next door to the Plaintiffs. Mr. CAMARDA's testimony supported the Defendant's counterclaims, not Plaintiffs';

3. no independent expert report measuring the decibel level of Defendant's car was offered. (Instead counsel annexed photos of unreliable readings taken by Plaintiffs with readings of up to 79 decibels. Not insignificantly, neither Plaintiffs nor their counsel cite minimum NYS approved decibel range of acceptable state limits capped between 76 and 90 decibels); and

4. Plaintiffs admitted at deposition that they had not seen any doctors or physicians for the unidentified "damages" **and or at any other time, to provide proof of any special or compensatory damages.**

8. As your affirmant has maintained, this action, pending between two (2) squabbling neighbors, is borne of hate and represents a gross waste of judicial resources.

FIRST COUNTERCLAIM

9. Defendant's first counterclaim is for abuse of process. Plaintiff has failed to annex a copy of the Answer and Counterclaims, but in paragraph SEVENTH the first counterclaim notes Plaintiffs:

"b. made constant but false complaints to the Defendant, police and other local officials complaining of the acts set forth in its complaint; and

c. have been told by local police and others that the Defendant is not guilty of any infractions nor violated any local laws, ordinances or rules ..

10. In paragraph EIGHTH, the counterclaim complains that:

"Plaintiffs nonetheless and maliciously elected to commence this litigation against Defendants with irresponsible haste. Indeed, the Plaintiffs' Complaint:

a. Erroneously avers in paragraph 4 that the Plaintiffs are the owners of the property upon which ...jurisdiction and all causes of action are grounded, thus rendering their Complaint procedurally defective" – To date, and despite being repeatedly reminded that the Plaintiffs have identified themselves as the owners of Defendants' property, they have yet to correct that pleading;

b. Postulates in paragraphs 34 and other paragraphs as to "particular concerns" and the potential for infestation that "may (but notably that has not) resulted from conditions that such paragraphs do not even accuse the Defendants of having created; and

c. Concedes in paragraph 42 that he confronted the Defendant but conceals from this Court the fact that he has summoned the police and other officials many times complaining of the conduct herein complained of and that no such authority has issued a violation or penalty against Defendant.

11. Citing Curiano v Suozzi, 63 NY2d 113, 116-17 [1984], Plaintiff alleges that Defendant failed to establish the "gist of the action for abuse of process." Respectfully, it is the Plaintiff who has missed the "gist." In Curiano v Suozzi, *id.*, NY's Court of Appeals noted:

"(1) Abuse of process has three essential elements: (1) regularly issued process, either civil or criminal, (2) an intent to do harm without excuse or justification, and (3) use of the process in a perverted manner to obtain a collateral objective (Board of Educ. v Farmingdale Classroom Teachers Assn., *supra*, at p 403). Relevant on this appeal are the first and last of these elements. First, the process used must

involve “an unlawful interference with one's person or property” (Williams v Williams, 23 NY2d 592, 596). **Insofar as the only process issued in the Suozzi v Parente action was a summons, the process necessary to obtain jurisdiction and begin the lawsuit, there was no unlawful interference with plaintiffs' persons or property because the institution of a civil action by summons and complaint is not legally considered process capable of being abused** (Hoppenstein v Zemek, 62 AD2d 979, 980; see *117 Drago v Buonagurio, 61 AD2d 282, 285, revd on other grounds 46 NY2d 778; Osinoff v Muchnick, 53 AD2d 858, 859). Moreover, plaintiffs have not alleged the “'gist of the action for abuse of process' ”, which is “ 'the improper use of process after it is issued' ” (Williams v Williams, supra, at p 596; Dean v Kochendorfer, 237 NY 384, 390; Miller v Stern, 262 App Div 5, 8). They do not contend that the summons issued by defendants was improperly used after it was issued but only that defendants acted maliciously in bringing the action. A malicious motive alone, however, does not give rise to a cause of action for abuse of process (Hauser v Bartow, 273 NY 370, 374).”

12. In the case at bar, the Plaintiffs served a summons and complaint seeking injunctive relief, with the intent to harm the Defendant and terminate his lifestyle. Further, Plaintiffs filed various complaints with the police (none of which found the volume of Defendant's car, or his driving, a nuisance) and town authorities (none of whom found the Defendant operating a commercial business and none of whom would cite Defendant, as Plaintiffs requested, for existing or potential health hazards from debris the Plaintiffs complained about.) What Cheer Realty Co. v Hashmall, 85 AD2d 502, 502-03 [1st Dept 1981] was a landlord-tenant case like Curiano v Suozzi, supra wherein other defendants “(with whom Hashmall was associated) instituted a Civil Court action on behalf of Hashmall, seeking the identical relief requested in their counterclaim in the landlord-tenant proceeding. ...” Noting that “Abuse of process is, broadly, intentionally causing proper process to issue for an improper purpose. The elements of the tort are (1) the regular issuance of the process; (2) the intent to cause harm, without justification; (3) the seeking of collateral advantage to defendant or detriment to plaintiff, outside the legitimate ends of the process (*Board of Education v. Farmingdale*, 38 N.Y.2d 397, 403, 380 N.Y.S.2d 635, 343 N.E.2d 278)” the Court in What Cheer, supra held, as is true in the case at bar, “These actions appear to

have been motivated by animus between the parties.” So too have these Plaintiffs repeatedly sought unsuccessful efforts to restrain and punish Plaintiff from living civilly in his neighborhood, motivated by animus between the parties, if not the actual prejudice of the Plaintiffs who, Defendant testified, slurred and slandered the Defendant in his presence and the presence of others whom Defendant identified. As in What Cheer Realty Co. v Hashmall, *supra*, so too did this Defendant’s “make out the elements set forth above and place in issue whether respondents’ conduct constitutes the tort of abuse of process.” *See also*, X-Act Contr. Corp. v Flanders, 148 AD3d 518, 518-19 [1st Dept 2017], Fox v Issler, 77 AD2d 860 [2d Dept 1980].

13. In Bd. of Ed. of Farmingdale Union Free School Dist. v Farmingdale Classroom Teachers Ass’n, Inc., Local 1889 AFT AFL-CIO, 38 NY2d 397, 402-04 [1975] the Court of Appeals conducted an in-depth analysis of the history of “abuse of process” claims in our State:

“In New York, actions based on abuse of process, that is, the tortiousness of using legal process to attain some collateral objective can be found in the earliest reported cases (Holley v. Mix, 3 Wend. 350; Brown v. Feeter, 7 Wend. 301; Baldwin v. Weed, 17 Wend. 224; Rogers v. Brewster, 5 Johns. 125; Bebinger v. Sweet, 6 Hun 478; Hazard v. Harding, 63 How.Prac. 326). One early appellate case warrants discussion as a classic example of abuse of process. Dishaw v. Wadleigh, 15 App.Div. 205, 44 N.Y.S. 207, *Supra* involved an attorney who assigned claims to an associate living in another part of the State for the purpose of having the associate institute proceedings. The idea behind it was to make it easier to pay the claim than to submit to the discomfort and expense of attending a distant court. Ruling in favor of plaintiff, the court rejected the argument that the procedure utilized was strictly legal. The court expressed the view that such trickery and cunning was ‘degrading to an honorable profession, and well calculated to bring the administration of justice into reproach and contempt’ (p. 209, 44 N.Y.S. p. 208; see, also, Foy v. Barry, 87 App.Div. 291, 84 N.Y.S. 335).

Abuse of process was first considered by our court in Dean v. Kochendorfer, 237 N.Y. 384, 143 N.E. 229, apparently the only time, to date, in which we sustained such a cause of action. There in a suit against a Magistrate for willfully issuing an arrest warrant for disorderly conduct, the court held that it was enough to show that regularly issued process was perverted to the accomplishment of an improper purpose. On the basis of the complaint the court inferred that the Magistrate had issued the warrant to show his authority and to gratify his personal feelings of importance. Since this act was one which the court felt (p. 390, 143 N.E. p. 231) ‘savors of oppression’ it was concluded that it constituted an abuse of process.

The tort was next before our court in Hauser v. Bartow, 273 N.Y. 370, 7 N.E.2d 268, where we ruled that the complaint failed to state a cause of action. The complaint alleged abuse of process by virtue of defendant's having had plaintiff declared incompetent and having herself named as his committee in order to gain financial benefit. We concluded that proof of ulterior motive was not sufficient. In order for the conduct to be considered tortious there must be something 'done outside the use of the process—a perversion of the process' (p. 374, 7 N.E.2d p. 269). Emphasizing that there had been a conclusive adjudication of the validity of the order appointing defendant as committee and that an accounting revealed no impropriety in the management of his property we went on to hold that there had been no perversion of process.

More recently, in Williams v. Williams, 23 N.Y.2d 592, 298 N.Y.S.2d 473, 246 N.E.2d 333, we held that a complaint in another action which had been mailed to members of the trade was not process capable of being abused.

Despite the paucity of New York authority, three essential elements of the **283 tort of abuse of process can be distilled from the preceding history and case law. First, there must be regularly issued process, civil or criminal, compelling the performance or forbearance of some prescribed act. Next, the person activating the process must be moved by a purpose to do harm without that which has been traditionally described as economic or social excuse or justification (cf. James v. Board of Educ. of Cent. School Dist. No. 1 of Towns of Orangetown & Clarkstown, 37 N.Y.2d 891, 378 N.Y.S.2d 371, 340 N.E.2d 735). Lastly, defendant must be seeking some collateral advantage or corresponding detriment to the plaintiff which is outside the legitimate ends of the process.

Assuming the truth of the facts pleaded along with every favorable inference (Williams v. Williams, 23 N.Y.2d, at p. 596, 298 N.Y.S.2d, at p. 476, 246 N.E.2d, at p. 335, *404 Supra; Cohn v. Lionel Corp., 21 N.Y.2d 559, 289 N.Y.S.2d 404, 236 N.E.2d 634; Howard Stores Corp. v. Pope, 1 N.Y.2d 110, 150 N.Y.S.2d 792, 134 N.E.2d 63) and applying the above principles, we find that the complaint before us is sufficient to state a cause of action for abuse of process. The subpoenas here were regularly issued process, defendants were motivated by an intent to harass and to injure, and the refusal to comply with a reasonable request to stagger the appearances was sufficient to support an ***643 inference that the process was being perverted to inflict economic harm on the school district.

While it is true that public policy mandates free access to the courts for redress of wrongs (Burt v. Smith, 181 N.Y. 1, 73 N.E. 495; Miller v. Stern, 262 App.Div. 5, 27 N.Y.S.2d 374; Doane v. Hescocock, 173 App.Div. 966, 159 N.Y.S. 1109) and our adversarial system cannot function without zealous advocacy, it is also true that legal procedure must be utilized in a manner consonant with the purpose for which that procedure was designed. Where process is manipulated to achieve some collateral advantage, whether it be denominated extortion, blackmail or retribution, the tort of abuse of process will be available to the injured party.”

Applying the Court of Appeals analysis to the facts at bar, here too have the Plaintiffs manipulated process “to achieve some collateral advantage, whether it be denominated extortion, blackmail or retribution” or homophobic hate and so too herein, must the tort of abuse of process be sustained.

SECOND COUNTERCLAIM

14. Defendant’s second counterclaim is for an intentional tort. It amply alleges, ¶:

NINETEENTH “That Plaintiffs’ Complaint is borne of their own hate filled prejudice and discrimination and forms the basis of intentional torts and other offenses arising from their prejudices, hate and discrimination and violation of all laws protecting against such conduct, as a result of which the Defendants ask this Court to punish and sanction Plaintiffs with an award of damages in a sum to be determined by this Court including but not limited to treble damages.”

15. At deposition Defendant testified to such hate filled speech, witnessed by his parents, live-in boyfriend and other neighbors who reported Plaintiff’s conduct to Defendant and Mr. CAMARDA who actually testified to same at his deposition.

16. Plaintiff argues that the counterclaim is inadequately pled. It is not, as each counterclaim incorporates by reference therein, the allegations of all prior counterclaims, admissions and denials. Accordingly, all prior and therein alleged allegations of name-calling and offensive slurs, combined with Plaintiffs’ unrelenting (but unsuccessful) efforts to enlist the support of the police (who refused to cite Defendants), town agencies and officials (who also refused to cite or punish Defendants) and neighbors, amply plead Plaintiff’s outrageous course of conduct sufficient to support the counterclaim alleging intentional infliction of emotional distress.

17. All the more offensively, counsel argues that ¶41 that discrimination is not an actionable tort nor crime, relying on Matter of Jennifer Amorosi v South Colonie Independent Central School District, 9 NY3d 367, 849 NYS2d 485, 880 NE2d 6 (2007) a workplace discrimination case that has no relevance to the facts at bar and (mis) citing NYS’s Human Rights

Law EXC §291 entitled EQUALITY OF OPPORTUNITY A CIVIL RIGHT” that in fact recognizes:

“2. The opportunity to obtain education, the use of places of public accommodation and the ownership, use and occupancy of housing accommodations and commercial space without discrimination because of age, race, creed, color, national origin, sexual orientation, military status, sex, marital status, or disability, as specified in section two hundred ninety-six of this article, is hereby recognized as and declared to be a civil right.”

Plaintiffs have commenced the underlying action to deny the Defendant his basic civil rights because he disapproves of Defendant’s lifestyle, claiming same a both public and private nuisance.

18. Defendant has sufficiently pled, and in fact proved, the grounds of their second counterclaim and Plaintiffs have failed to prove the absence of any material fact.

THIRD COUNTERCLAIM

19. Defendant’s third counterclaim alleges malicious prosecution. It repeats every prior admission, denial and other allegations set forth before it and amply illustrates all the elements of the cause of action with specificity.

20. Your affirment takes no exception to counsel’s recitation of hornbook principles identifying the elements of the cause of action but rather notes that Defendant has satisfied every such element. Specifically, and as angry Plaintiffs cannot deny. they commenced the underlying action motivated by malice. There is no probable cause to support the causes of action they alleged in their Complaint, to wit: Defendant’s being a nuisance. As established in the affirmation submitted in support of Defendant’s motion for summary judgment, Plaintiffs sued on three different grounds. The first alleged Defendants a **Private Nuisance**, the second a **Public Nuisance**, the third a **Nuisance per se**, and the last claimed **Intentional Infliction of Emotional Distress**.

21. In support of Defendant's motion to dismiss, your affirmant provided case law noting, with respect to each cause of action set forth in Plaintiff's Complaint (and this perhaps best illustrates the strategy of Plaintiff's decision to commence an independent motion versus cross motion that would have also resulted in one fewer submission for this Court to read) that NO CAUSE of action could be maintained as a matter of law, nevertheless fact as:

Private Nuisance requires a showing of special damages. Plaintiffs failed to allege any damages, *see Hogan v County of Lewis, New York*, 7:11-CV-754 (BJR), 2017 WL 3017499, at *5-10 [NDNY July 14, 2017], *affd sub nom. Okudinani v Rose*, 779 Fed Appx 768 [2d Cir 2019]. **"This failure to set forth appropriate damages dooms the Hogans' claims without the necessity of further examination by the Court"** "dooming" their claim of private nuisance."

Public Nuisance is not actionable by a private person, *Monaghan v R.C. Diocese of Rockville Ctr.*, 165 AD3d 650, 652-54 [2d Dept 2018]

Nuisance Per Se, if even recognized by NY is defensible by Plaintiffs' "contributory negligence" and cannot be maintained without allegations of "special damages" that Plaintiffs have failed to allege, *see McDonald v Gannett Publications*, 121 Misc 2d 90, 92 [Sup Ct 1983]; and

Intentional infliction of Emotional Distress requires a showing of "outrageous conduct" that Plaintiffs failed to plead given the fact that even the police refused to cite Defendant for his car or his driving.

22. Having thus proven the Plaintiff's underlying complaint without merit, Defendant's cross motion seeking to punish such malicious prosecution and make the Defendants (who have been forced to incur tens of thousands of dollars in legal fees alone, the embarrassment of having third party business contacts notice by Plaintiff for third party depositions (that failed to suggest the Defendant's engine had been modified as Plaintiff alleged in support of his underlying action

claiming Defendant a nuisance for driving a thus unmodified and perfectly legal vehicle) and fear of his potential loss of employment caused by Plaintiff's third party deposition notices, not to mention the scrutiny of police, town and other officials whom Plaintiff has (albeit unsuccessfully) enlisted along with neighbors, dividing loyalties and bringing hate to an entire neighborhood, Defendant has established the grounds to support his counterclaim for malicious prosecution upon the requested termination and dismissal of Plaintiff's underlying Complaint.

FOURTH COUNTERCLAIM

23. The fourth counterclaim also incorporates all the prior paragraphs and allegations. In its second paragraph, referencing the Plaintiff's efforts to enlist the support of other neighbors (who refused to participate in Plaintiff's lawsuits) it accuses Defendants of being a private nuisance by engaging in the complained of behavior (notably, and insofar as counsel makes much ado about Defendant's concession that Mrs. DeSousa was respectful to him and did not denigrate him as her husband did, with vile homophobic slurs; it is important to remember that Plaintiffs similarly fail to alleged that Mr. Calvagno's co-defendant committed any of the conduct complained of or was responsible therefor.)

25. As Plaintiffs have grounded their complaints against Defendants on three charges of nuisance (and one alleging intentional infliction of emotional distress) counsel is careful in his arguments.

26. However, and as Plaintiffs themselves concede through this three (3+) long year feud with their neighboring Defendant, Plaintiffs have relentlessly tried through any and every means possible to prove Defendants a nuisance while Defendants have credibly noted that no police or other authority has cited them as such. In Bd. of Directors of Squire Green at Pawling

Homeowners Ass'n, Inc. v Bell, 89 AD3d 657, 659 [2d Dept 2011] the Court noted that the Plaintiff had:

“... failed to establish its prima facie entitlement to judgment as a matter of law dismissing the defendant's counterclaim, which properly stated a cause of action to recover damages for creation of a private nuisance (*see* **291 *Aristides v. Foster*, 73 A.D.3d 1105, 1106, 901 N.Y.S.2d 688).”

Like the Bd. Of Directors of Squire Green, *supra* Plaintiffs who “did not submit any evidence to refute the defendant's allegations” and:

“failed to eliminate all triable issues of fact in connection with the merits of the counterclaim. ... The Association's failure to make a prima facie showing eliminating all triable issues of fact required denial of that branch of its motion which was for summary judgment, in effect, dismissing the counterclaim, regardless of the sufficiency of the defendant's papers in opposition (*see Winegrad v. New York Univ. Med. Ctr.*, 64 N.Y.2d 851, 853, 487 N.Y.S.2d 316, 476 N.E.2d 642)”

So too did the Plaintiffs herein who have refuted bias (a credibility issue that can only be determined by the trier of fact) but failed to provide a police report that found Defendants’ car a nuisance, failed to provide a reading from an independent expert, failed to even cite the law on decibel limits FAIL to prove any triable issue of fact in connection with the Defendant’s cross claim for private nuisance.

FIFTH COUNTERCLAIM

27. Plaintiffs seek to dismiss Defendant’s fifth counterclaim that, in a catchall of intentional torts, accuses the Plaintiffs who have:

Relentlessly called the police and other authorities on Defendant (without citation or violation issued against him);

Stalked, followed and harassed Defendant on the streets taunting him and trying to follow Defendant on his way to work;

Notice to third parties with whom he works for deposition, thus and deliberately undermining his employment, status and business relationships with people who were forced to hire attorneys to appear at deposition that failed to prove that

Defendant had modified his factory car (thus deemed within legal sound limits) and ability to work and earn a livelihood;

Slandorously slurred the Plaintiff's sexual preferences, derogatorily calling him among other civil rights offenses, a "faggot" and "homo";

Divided the neighborhood in an effort to enlist their participation in this lawsuit (which notably no neighbors joined as Plaintiffs);

Forced the Defendant to incur tens of thousands of dollars in legal fees he can ill afford thus subjecting Defendant to the potential inability to pay his mortgage and lose his home in foreclosure, all to defend a meritless action he has commenced to deny Defendant his home and punish his gay "nuisance" lifestyle; and

Commenced the underlying action and taken other actions accusing the Defendant of conduct he has failed to provide any independent proof of.

28. Citing a landlord tenant case, Edelstein v. Farber, 27 A.D.3d 202, 811 N.Y.S.2d 358 (1st Dep't 2006), Plaintiff argues that NY does not recognize a common law cause of action for harassment.

29. That is apparently true, but still, NY case law does recognize common law causes of action arising out of harassment. *See Garza v Nunz Realty, LLC*, 187 AD3d 467 [1st Dept 2020]

"New York does not recognize a common-law cause of action for harassment" (*see Edelstein v. Farber*, [27 A.D.3d 202, 811 N.Y.S.2d 358 \[1st Dept. 2006\]](#)).

Plaintiffs' remaining claims should be reinstated. The first cause of action, for negligent hiring, retention, and supervision, was properly stated based on plaintiffs' allegations that the porter engaged in a pattern of harassment that the landlord was aware of, and the landlord continued to employ the porter after it became aware of the purportedly false report (*see Scollar v. City of New York*, 160 A.D.3d 140, 74 N.Y.S.3d 173 [1st Dept. 2018]). Plaintiffs also sufficiently pleaded a claim of negligence (second cause of action), *126 by alleging that the landlord failed to take minimal safety precautions against foreseeable harm from the porter, in that the porter made previous false reports to the police that the landlord was aware of, and thus it was foreseeable that the porter would make a false claim such as the one to CPS (*see CB v. Howard Sec.*, 158 A.D.3d 157, 164–165, 69 N.Y.S.3d 587 [1st Dept. 2018]).

Although New York does not recognize an independent cause of action for punitive damages (*see Wholey v. Amgen, Inc.*, 165 A.D.3d 458, 459, 86 N.Y.S.3d 16 [1st Dept. 2018]), plaintiffs' "fourth cause of action" sufficiently made a demand for

punitive damages in connection with the other claims in the complaint. Plaintiffs sufficiently alleged that defendants' pattern of harassment, which included the false CPS report, was intentional, malicious, and wanton (*see Rey v. Park View Nursing Home*, 262 A.D.2d 624, 627, 692 N.Y.S.2d 686 [1st Dept. 1999]).

Plaintiffs also stated causes of action for intentional and negligent infliction of emotional distress (sixth and seventh causes of action), based on their allegations that defendants engaged in extreme and outrageous conduct intended to cause, or creating an unreasonable risk of causing, emotional distress, which they did suffer (*see Scollar*, 160 A.D.3d at 144, 74 N.Y.S.3d 173; *see also*  *Sheila C. v. Povich*, 11 A.D.3d 120, 130–131, 781 N.Y.S.2d 342 [1st Dept. 2004]).”

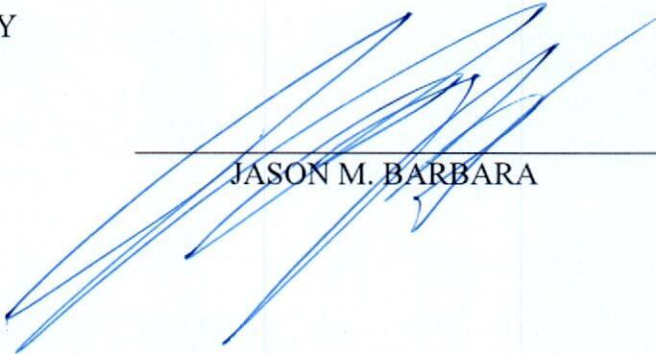
30. Thus and while NY law may not recognize a common law cause of action for harassment, it does recognize other causes of action and damages arising from harassment like Plaintiff's.

31. Your affirmant has already addressed the elements of intentional torts. Under this subheading counsel argues credibility issues mischaracterizing a “handful of instances of alleged conduct – conduct which Calvagno similarly engaged in” (¶69) concluding that the conduct “was not so outrageous in character and so extreme in degree as to go beyond all possible bounds of decency...” The argument, *disingenuous in that it concedes the insufficiencies of Plaintiff's fourth cause of action for intentional infliction of emotional distress*, fails to take note however of the few things that distinguishes Plaintiff's complained of conduct from Defendant's; that is the Plaintiff's third party depositions meant to intimidate and compromise the Defendant's employment and stature at work along with the malicious motive of Plaintiff's prejudices and homophobic slurs, a violation of Defendant's basic civil rights.

32. Defendant has, by reason of Plaintiffs' prejudices, been irreparably injured, emotionally, financially and publicly. His cross claims have merit and Plaintiff's defective motion to dismiss them must be denied as Plaintiffs have failed to eliminate all triable issues of fact in connection with the merits of Defendant's counterclaims.

WHEREFORE, your affirmant respectfully asks this Court to deny Plaintiff's Notice of Motion and award to Defendant such other, further and different relief as to this Court may seem just and proper.

Dated: New Hyde Park, NY
June 19, 2024



JASON M. BARBARA